

Title: Civil Rights Overview	Category: Civil Rights
CFR Reference: 7 CFR 246.8	Policy Number: 11.001
Effective Date: 01/01/2019	Revised Date: 01/31/2024

POLICY STATEMENT:

The DC WIC program is a federally assisted program and therefore must comply with

- Title VI of the Civil Rights Act of 1964 (42 U.S.C. 2000d et seq.)
- Title IX of the Education Amendment of 1972
- Section 504 of the Rehabilitation Act of 1973
- The Age Discrimination Act of 1975
- Department of Agriculture regulations on nondiscrimination
- FNS instructions and the requirements of 7 CFR 246.8

to ensure that no person shall on the grounds of race, color, national origin, age, sex (including gender identity and sexual orientation), or handicap, be excluded from participation in, be denied benefits of, or be otherwise subjected to discrimination under the Program.

The State and Local Agency are responsible for the following:

1. Informing DC WIC program applicants and participants on how to file a civil rights complaint with the USDA. Civil rights complaints must be referred to FNS within 5 calendar days.
2. Maintaining a record of civil rights complaints.
3. Make WIC program information available to the public upon request.
4. Providing service assistance for persons with **disabilities** and language services for applicants and participants with **Limited English Proficiency (LEP)**.
5. Including the most current FNS non-discrimination statement (available at <https://www.fns.usda.gov/cr/fns-nondiscrimination-statement>) on all essential Program materials and prominently displaying the “And Justice for All” poster in all offices where there is a USDA presence and where it may be read by customers. All “And Justice for All” posters must be displayed in a specific size” 11” width x 17” height. The Local Agency must contact the State Agency to order posters.
6. Collecting and reporting racial and ethnic participation data as required by title VI of the Civil Rights Act of 1964.
7. Provide ongoing civil rights training to staff on an annual basis, at minimum.
8. Regularly review and monitor activity to ensure Program compliance with the nondiscrimination laws and regulations.

DEFINITIONS

1. **Limited English Proficiency** – individuals who do not speak English as their primary language and who have a limited ability to read, speak, write, or understand English because of their national origin.



2. **Disability** – a person who has a physical or mental impairment which substantially limits one or more major life activity, has a record of such an impairment, or is regarded as having such an impairment.

PROCEDURE

The State and Local Agency must perform at minimum the following actions related to their civil rights responsibilities:

Inform DC WIC program applicants and participants on ways to file a civil rights complaint with the USDA

Applicants or participants may file a civil rights complaint via the following methods:

1. Any of the contact methods listed on the most recent nondiscrimination statement. The most recent nondiscrimination statement can be found at <https://www.fns.usda.gov/cr/fns-nondiscrimination-statement> .
2. The State or Local Agency staff may use attachment 11.001B WIC Complaint Form to collect the complaint information and refer this information to program.intake@usda.gov within 5 calendar days. The Local Agency must notify the State Agency when referring a complaint.

The State or Local Agency staff must inform the applicant or participant that complaints may be written, verbal, or anonymous.

All complaints must be filed within 180 days of the alleged act of discrimination.

Maintain a record of civil rights complaints

If a civil rights complaint is completed by the State or Local Agency using the 11.001B WIC Complaint Form, the complaint must be logged using attachment 11.001C Civil Rights Complaint Log Sheet. This log sheet, along with any correspondence regarding the complaint, must be kept on file for three years from the date the State Agency is notified that the complaint is closed.

Make WIC program information available to the public upon request

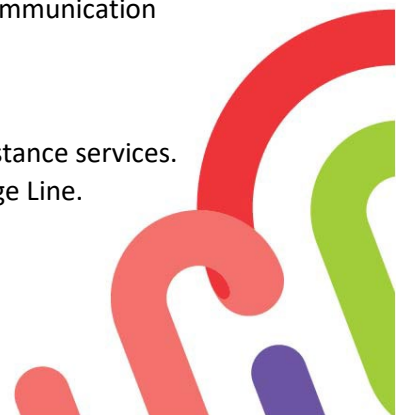
The State and Local Agency must ensure DC WIC program applicants and participants are made aware of Program availability in accordance with DC WIC policy 7.007 Wait List Overview, program rights and obligations in accordance with DC WIC policy 8.016 Rights and Obligations, and procedures for filing a civil rights complaint (see above).

Program assistance for persons with disabilities

The State and Local Agency must make reasonable accommodations to provide Program services in a manner appropriate to persons with disabilities. Examples of reasonable accommodations include architectural accommodations (e.g., wheelchair accessible entrances, elevator access, etc.), remote WIC services in accordance with 8.003 Physical Presence and Identification, and access to communication aids to persons that have hearing, vision, or speech disabilities.

Serving persons with LEP

State and Local Agency staff must notify LEP persons of their right to free language assistance services. This can include a bilingual staff member or interpretation services through the Language Line.



The LEP person may opt to provide their own interpreter. The State Agency highly discourages reliance on children as interpreters. Likewise, the LEP person should be permitted to use family and friends as interpreters only after the State or Local Agency has offered free language assistance. If the LEP person opts to use their own interpreter or chooses to decline interpretation services, they must sign the Language Service Waiver in the participant's record in the MIS. If requested, a physical form of the Language Service Waiver may be used (see attachment 11.00D Language Service Waiver). The physical form must be signed and scanned into the participant's record in the MIS. The Language Service Waiver must be completed each time an LEP person declines the use of free language assistance services.

The Local Agency must ensure that all rights and responsibilities are read to the AR/AAR or participant in the appropriate language and in accordance with DC WIC policy 8.016 Rights and Obligations.

In accordance with DC code § 2–1933 (a) The State and Local Agency must ensure that all vital Program documents are available in each language spoken by a limited or no-English proficient population that constitutes 3% or 500 individuals, whichever is less, of the population served. Vital documents include at minimum:

- Rights and Obligations form
- Ineligibility Notice
- Waiver forms (i.e. Language Service Waiver, Zero Income, Breast Pump Release of Liability, etc)
- Notice of Program Violations

Nondiscrimination Statement and “And Justice for All” poster

At minimum, the State Agency must ensure that the nondiscrimination statement must be included on:

- Rights and Obligations form
- Ineligibility Notice
- Notice of Program Violations
- Public information promoting the DC WIC program (e.g., program brochures, marketing materials, webpages, etc).

The Local Agency must display the “And Justice for All” poster in a prominent location for all to view.

The State and Local Agency must convey the message of equal opportunity in all photos and other graphics that are used to provide program or program-related information, including the use of the nondiscrimination statement when and where applicable.

Regular review/monitoring of Program activities

The State and Local Agency must annually review their activities for civil rights requirements compliance. The Local Agency may use 11.001A Monitoring Civil Rights Compliance as a checklist for monitoring civil rights compliance.

The State Agency will monitor the Local Agency civil rights activities and compliance in accordance with 10.004 State Agency Management Evaluations.

Collection/reporting of racial and ethnic participation data

In accordance with 7 CFR 246.8(a)(3), the State Agency must collect and report racial and ethnic participation data. This data is collected in the MIS and must be maintained for three years.



The Local Agency must:

1. Ask for race and ethnicity data of each applicant to the DC WIC program.
2. Inform the applicant (or AR/AAR for children and infants) that reporting this data is voluntary and is requested solely for the purpose of determining the State's compliance with Civil Rights laws and has no effect on their eligibility.
3. Inform the applicant (or AR/AAR for children and infants) that another data collection method will be used if they decline to self-identify (i.e. the Local Agency staff will observe and report based on their judgement).
4. Collect ethnicity before race.
5. Provide an option to select one or more races.

Civil rights training requirements

The State Agency will provide civil rights training to the Local Agency on an annual basis.

The Local Agency must provide civil rights training:

- On an annual basis to all staff who interact with DC WIC program applicants or participants
- To all new employees prior to participating in the delivery of DC WIC program services

The State and Local Agency civil rights training must cover:

- the collection and use of Program data
- effective public notification system (i.e. program information available to the public upon request and notice of nondiscrimination)
- complaint procedures
- compliance review techniques
- resolution of noncompliance
- requirements for reasonable modifications and auxiliary aids and services for persons with disabilities, requirements for LEP persons
- confliction resolution and customer service

REFERENCES

DC WIC policies 7.007 Wait List Overview, 8.016 Rights and Obligations, 10.004 State Agency Management Evaluations

Code of the District of Columbia; Subchapter II. Language Access; DC code § 2–1933 (a)

Americans with Disabilities Act - www.ada.gov/resources/disability-rights-guide/

ATTACHMENTS & FORMS

11.001A Monitoring Civil Rights Compliance

11.001B WIC Complaint Form

11.001C Civil Rights Complaint Log

11.001D Language Service Waiver

